

CASE NAME: LIBERTY MUTUAL FIRE INSURANCE COMPANY VS. RACHEL SMITH

***HEARING ON MOTION IN RE: MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT FILE BY
PLN ON 08/20/2025**

FILED BY: LIBERTY MUTUAL FIRE INSURANCE COMPANY,

TENTATIVE RULING:

Plaintiff Liberty Mutual Fire Insurance Company (“Plaintiff”) filed a Motion to Enforce Settlement Agreement and Enter Judgment on August 20, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement on or about October 26, 2022 (the “Settlement Agreement”), the terms of which included payment by the defendant Rachel Smith (“Defendant”) in the amount of \$6,823.54 to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Brian P. Tapper filed August 20, 2025 as part of Motion to Enter Stipulated Judgment after Default (“Supporting Declaration”), ¶2 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, including interest and court costs. *Id.*, **Exhibit A**, ¶¶1-8.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶3. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶5-7. After credit for amounts paid, there remains \$6,123.54 principal due and owing, plus \$1,947.79 prejudgment interest at the rate of 10% per annum and costs of \$225.00. See Supporting Declaration, ¶¶3-5.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,071.33, plus costs of \$225.00, for a total judgment of \$8,296.33.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHETT SALZMAN

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/12/2025**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Plaintiff American Express National Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 12, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement filed on July 11, 2023 (the “Settlement Agreement”), the terms of which included a stipulation for entry of judgment in the amount of \$7,869.86 plus costs, less any credits, in the event of a default by the defendant Chett Salzman (“Defendant”) in the payment of a reduced amount of \$5,945.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 12, 2025 (“Supporting Declaration”), ¶¶5-6 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶2, 9 and 10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$2,167.35 due and owing, plus costs of \$367.90. See Supporting Declaration, ¶¶6-7; see Memorandum of Costs filed September 12, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.